
THE ESSAYS OF FRANCIS BACON

truly *amici curiae*,¹ but *parasiti curiae*,² in puffing up a court beyond her bounds for their own scraps and advantage. The third sort is of those that may be accounted the left hands of courts—persons that are full of nimble and sinister tricks and shifts, whereby they pervert the plain and direct courses of courts and bring justice into oblique lines and labyrinths. And the fourth is the poller and exacter of fees; which justifies the common resemblance of the courts of justice to the bush, whereunto while the sheep flies for defense in weather, he is sure to lose part of his fleece. On the other side, an ancient clerk, skilful in precedents, wary in proceeding, and understanding in the business of the court, is an excellent finger of a court, and doth many times point the way to the judge himself.

Fourthly, for that which may concern the sovereign and estate. Judges ought, above all, to remember the conclusion of the Roman Twelve Tables, “*Salus populi suprema lex*,”³ and to know that laws, except they be in order to that end, are but things captious, and oracles not well inspired. Therefore it is an happy thing in a state when kings and states do often consult with judges; and again, when

¹ Friends of the court. ² Parasites or flatterers of the court. ³ The safety of the people is the supreme law.